

PLJ 2019 Lahore (Note) 41
[Multan, Multan Bench]

Present: MASUD ABID NAQVI, J.

AHMAD YAR --Petitioner

versus

ADDITIONAL DISTRICT JUDGE, JAHANIAN, DISTRICT KHANEWAL and 3 others--Respondents

W.P. No. 3987 of 2016, decided on 6.12.2016.

Constitution of Pakistan, 1973--

---Art. 199--Specific Relief Act, 1877, S.42--Civil Procedure Code, 1908 O. XVI, Rr. 1 & 2--Suit for declaration challenging validity of mutation--Respondent was filed application for summoning of witness--Accepted--Petitioner was filed revision petition--Dismissed--Challenge to--A party in default cannot as a matter of right or as a matter of course without assigning or establishing any good cause for omission, ask for calling/summoning or even to produce witnesses only on account of a lame excuse/reason and a bald assertion that, it shall be in interest of justice and/or it shall facilitate Court in deciding matter--In case in hand, good cause is absolutely lacking within purview of sub-Rule 2 of Order XVI Rule 1, CPC--Conduct of respondents/defendants has remained non-serious and negligent, therefore, they are not entitled to any relief--That learned Courts below fell in error while allowing application of respondent/ Defendant No. 2--Impugned orders are passed without properly evaluating facts of case and keeping in view settled law--Therefore, same are not sustainable in eye of law, hence, same are set aside--Petition was accepted. [Para 3 & 4] A, B & C

Rana Muhammad Aftab Khan, Advocate for Petitioner.

Date of hearing: 6.12.2016

ORDER

Brief facts of this case are that petitioner/plaintiff filed a suit for declaration challenging the validity of Mutation No. 723 dated 30.09.2003. The respondents/defendants contested the suit by filing written statement. Out of divergent pleadings of the parties, issues were framed on 30.03.2013 and evidence was called. On 23.07.2015, an application for summoning of witness was filed by Defendant No. 2/respondent which was duly contested the plaintiff/petitioner and the same was accepted *vide* order dated 11.11.2015. Feeling aggrieved, petitioner/plaintiff filed revision petition challenging the said order which was dismissed *vide* order dated 18.02.2016. Aggrieved by the said orders, the petitioner/plaintiff has filed instant writ petition and challenged the validity thereof.

2. I have heard the arguments of learned counsel for the petitioner and perused the record.

3. Perusal of record reveals that suit for declaration was filed by the petitioner/plaintiff on 03.10.2012 wherein issues were framed on 30.03.2013 and evidence of the parties was summoned. On 23.07.2015, an application for summoning of revenue officials as witnesses was filed by Defendant No. 2/respondent which was accepted. In order to resolve the proposition(s) involved in the matter and to enunciate the true import and purport of Order XVI, Rule 1, CPC it seems expedient to reproduce the same which reads as below.--

1. Summons to attend to give evidence or produce document--

(1) Not later than seven days after the settlement of issues, the parties shall present in Court a [certificate of readiness to produce evidence, alongwith a] list of witnesses whom they propose to call either to give evidence or to produce documents.

(2) A party shall not be permitted to call witnesses other than those contained in the said list, except with the permission of the Court and after showing good cause for the omission of the said witnesses from the list; and if the Court grants such permission, it shall record reasons for so doing.

(3) -----

The language of Rules 1 and 2 of Order XVI, CPC clearly stipulates that the parties shall present in Court a certificate of readiness to produce evidence alongwith a list of witnesses whom they propose to call either to give evidence or to produce documents but not later than seven days after the settlement of issues and a party shall not be permitted to call witnesses other than those contained in the said list except with the permission of the Court after showing good cause for the omission of the witnesses from the list and the Court shall record reasons while allowing such like application. It is discretion of the Court to grant permission to produce witnesses other than those contained in the list provided by a party but subject to reasons to be recorded in writing.

In the case in hand, perusal of record reveals that issues were framed on 30.03.2013 and it was ordered that list of witnesses be submitted within seven days. On 23.07.2015, respondent/ Defendant No. 2 filed an application to summon revenue officials as witnesses after one year and four months of the framing of issues on 30.03.2013. The respondent/ Defendant No. 2 has not been able to make out a good cause for non-mentioning of names of witnesses in the list of witnesses within the purview of Order XVI Rule 1(2), CPC. The party in default has to show a legally sufficient reason, why a request should be granted or the inaction/omission should be excused, in other words the judicial conscious of the Court should be satisfied with justifiable reasons. In any case, a party in default cannot as a matter of right or as a matter of course without assigning or establishing any good cause for the omission, ask for the calling/summoning or even to produce the witnesses only on account of a lame excuse/reason and a bald assertion that, it shall be in the interest of justice and/or it shall facilitate the Court in deciding the matter. Reference is made to *Muhammad Anwar and others Vs Mst. Ilyas Begum and others* (PLD 2013 Supreme Court 255).

In the case in hand, good cause is absolutely lacking within the purview of sub-rule (2) of Order XVI Rule 1, CPC. The conduct of the respondents/defendants has remained non-serious and negligent, therefore, they are not entitled to any relief.

4. In view of the foregoing discussion, this Court is of the considered view that learned Courts below fell in error while allowing the application of the Respondent/Defendant No. 2. The impugned orders are passed without properly evaluating the facts of the case and keeping in view the settled law. Therefore, the same are not sustainable in the eye of law, hence, the same are set aside. Resultantly, this petition is accepted.

(M.M.R.) Petition accepted